



Brussels, 28.6.2023  
COM(2023) 366 final

ANNEXES 1 to 3

## **ANNEXES**

**to the**

**Proposal for a  
DIRECTIVE OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL  
on payment services and electronic money services in the Internal Market amending  
Directive 98/26/EC, and repealing Directives 2015/2366/EU and 2009/110/EC**

{SEC(2023) 256 final} - {SWD(2023) 231 final} - {SWD(2023) 232 final}

## **ANNEX I**

### **PAYMENT SERVICES**

**(as referred to in point 3 of Article 2)**

1. Services enabling cash to be placed on and/or withdrawn from a payment account.
2. Execution of payment transactions, including transfers of funds from and to a payment account, including where the funds are covered by a credit line with the user's payment service provider or with another payment service provider.
3. Issuing of payment instruments.
4. Acquiring of payment transactions.
5. Money remittance.
6. Payment initiation services.
7. Account information services.

## **ANNEX II**

### **ELECTRONIC MONEY SERVICES**

**(as referred to in point 37 of Article 2)**

Issuance of electronic money, maintenance of payment accounts storing electronic money units and transfer of electronic money units.

**ANNEX III*****CORRELATION TABLE***

| <b>DIRECTIVE (EU)</b><br><b><u><a href="#">2015/2366</a></u></b> | <b>DIRECTIVE</b><br><b><u><a href="#">2009/110/EC</a></u></b> | <b>DIRECTIVE</b><br><b>XXX (PSD3)</b> | <b>REGULATION</b><br><b>XXX (PSR)</b> |
|------------------------------------------------------------------|---------------------------------------------------------------|---------------------------------------|---------------------------------------|
| Article 1(1)                                                     | Article 1(1)                                                  |                                       | Article 2(1)                          |
| Letter (a)                                                       | Letter (a)                                                    |                                       | Letter (a)                            |
| Letter (b)                                                       | Letter (b)                                                    |                                       | -                                     |
| Letter (c)                                                       | Letter (c)                                                    |                                       | Letter (b)                            |
| Letter (d)                                                       |                                                               |                                       | Letter (c)                            |
| Letter (e)                                                       | Letter (d)                                                    |                                       | Letter (d)                            |
| Letter (f)                                                       | Letter (e)                                                    |                                       | Letter (e)                            |
|                                                                  | Article 1(2)                                                  | Article 1(1)                          |                                       |
|                                                                  | Article 1(3)                                                  | Article 1(2)                          |                                       |
| Article 1(2)                                                     |                                                               |                                       | Article 1(1)                          |
|                                                                  |                                                               |                                       | Article 1(2)                          |
| Article 2(1)                                                     |                                                               |                                       | Article 2(1)                          |
| Article 3                                                        |                                                               |                                       | Article 2(2)                          |
| Letter (a)                                                       |                                                               |                                       | Letter (a)                            |
| Letter (b)                                                       |                                                               |                                       | Letter (b)                            |
| Letter (c)                                                       |                                                               |                                       | -                                     |
| Letter (d)                                                       |                                                               |                                       | Letter (c)                            |

|                  |              |                  |                  |
|------------------|--------------|------------------|------------------|
| Letter (e)       |              |                  | Letter (d)       |
|                  |              |                  | Letter (e)       |
| Letter (f)       |              |                  | -                |
| Letter (g)       |              |                  | Letter (f)       |
| Letter (h)       |              |                  | Letter (g)       |
| Letter (i)       |              |                  | Letter (h)       |
| Letter (j)       |              |                  | Letter (i)       |
| Letter (k)       | Article 1(4) |                  | Letter (j)       |
| Letter (l)       | Article 1(5) |                  | Letter (k)       |
| Letter (m)       |              |                  | Letter (l)       |
| Letter (n)       |              |                  | Letter (m)       |
| Letter (o)       |              |                  | -                |
| Article 2(2)     |              |                  | Article 2(3)     |
| Article 2(3)     |              |                  | Article 2(4)     |
| Article 2(4)     |              |                  | Article 2(5)     |
| Article 2(5)     |              |                  | Article 2(6)     |
|                  |              |                  | Article 2(7)     |
|                  |              |                  | Article 2(8)     |
| Article 4:       | Article 2:   | Article 2:       | Article 3:       |
| Points (1) – (3) |              | Points (1) – (3) | Points (1) – (3) |
| Point (4)        |              | Point (4)        | Point (4)        |

|                      |  |                      |                      |
|----------------------|--|----------------------|----------------------|
| Point (5)            |  | Point (5)            | Point (5)            |
| Point (6)            |  | -                    | -                    |
| -                    |  | -                    | Points (6) and (7)   |
|                      |  | Point (6)            | Point (8)            |
| Point (7)            |  | Point (7)            | Point (9)            |
|                      |  | Point (8)            | Point (10)           |
| Points (8) – (13)    |  | Points (9) – (14)    | Points (11) – (16)   |
| -                    |  | -                    | Point (17)           |
| Point (14)           |  | Point (15)           | Point (18)           |
| Points (15) and (16) |  | Points (17) and (18) | Points (20) and (21) |
| Point (17)           |  | Point (16)           | Point (19)           |
| Points (18) and (19) |  | Points (19) and (20) | Points (22) and (23) |
| Point (20)           |  | Point (21)           | Point (24)           |
| Point (21)           |  | -                    | Point (25)           |
| Point (22)           |  | Point (22)           | Point (26)           |
| Points (23) and (24) |  | -                    | Points (27) and (28) |
| -                    |  | -                    | Point (29)           |
| Point (25)           |  | Point (23)           | Point (30)           |
| Point (26) – (30)    |  | -                    | Points (31) – (35)   |

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|----------------------|-----------|----------------------|----------------------|
|                      |           | Point (24)           | Point (36)           |
| Point (31)           |           | -                    | Point (37)           |
| Point (32)           |           | Point (25)           | Point (38)           |
| Points (33) – (36)   |           | -                    | Points (39) – (42)   |
| Points (37)          |           | Point (26)           | Point (43)           |
|                      |           | Point (27)           |                      |
| Points (38) – (40)   |           | Points (28) – (30)   | Points (44) – (46)   |
| Points (41) and (42) |           | -                    | -                    |
| Point (43)           |           | -                    | Point (47)           |
| Points (44) and (45) |           | Points (31) and (32) | Points (48) and (49) |
| Point (46)           |           | Point (33)           | -                    |
| Point (47)           |           | -                    |                      |
| Point (48)           |           |                      | -                    |
|                      | Point (1) | Point (39)           | Point (55)           |
|                      | Point (2) | Point (34)           | Point (50)           |
|                      | Point (3) | -                    | -                    |
|                      | Point (4) | Point (35)           | -                    |
|                      |           | Points (36) – (38)   | Points (52) – (54)   |
|                      |           |                      | Point (55)           |

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|----------------------|--------------|-------------------------------|--|
|                      |              | Article 3(1), (2)             |  |
| Article 5(1)         | Article 3(1) | Article 3(3)                  |  |
|                      | Article 3(2) | Article 9(5)                  |  |
| Article 5(2)         |              | Article 3(4)                  |  |
| Article 5(3)         |              | Article 36(4)                 |  |
| Article 5(4) and (5) |              | -                             |  |
| Article 5(6)         |              | Article 3(5), (6)             |  |
| Article 5(7)         |              | -                             |  |
| Article 6(1)         | Article 3(3) | Article 4(1)                  |  |
|                      | Article 3(4) | Article 20(1),<br>(2), (3)    |  |
| Article 6(2)         |              | Article 4(2)                  |  |
| Article 6(3)         |              | Article 4(3)                  |  |
| Article 6(4)         |              | Article 4(4)                  |  |
| Article 7            | Article 4    | Article 5                     |  |
| Article 8(1)         | Article 5(1) | Article 6(1)                  |  |
| Article 8(2)         | Article 5(6) | Article 6(2)                  |  |
| Article 8(3)         | Article 5(7) | Article 6(3)                  |  |
| Article 9(1)         |              | Article 7(1),<br>Article 7(2) |  |
| Article 9(2)         |              | Article 7(3)                  |  |



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| -             |              | Article 7(4)                  |  |
| Article 9(3)  |              | Article 7(5)                  |  |
|               |              | Article 8(1)                  |  |
|               | Article 5(2) | Article 8(2),<br>Article 8(4) |  |
|               | Article 5(3) | Article 8(3)                  |  |
|               | Article 5(4) | Article 8(5)                  |  |
|               | Article 5(5) | Article 8(6)                  |  |
| Article 10(1) |              | Article 9(1)                  |  |
| Article 10(2) |              | Article 9(2)                  |  |
|               | Article 7(1) | Article 9(3)                  |  |
|               | Article 7(2) | Article 9(4)                  |  |
|               | Article 7(3) |                               |  |
|               | Article 7(4) |                               |  |
| Article 11(1) |              | Article 13(1)                 |  |
| Article 11(2) |              | Article 13(2)                 |  |
| Article 11(3) |              | Article 13(3)                 |  |
| Article 11(4) |              | Article 13(4)                 |  |
| Article 11(5) |              | Article 13(5)                 |  |
| Article 11(6) |              | Article 13(6)                 |  |
| Article 11(7) |              | Article 13(7)                 |  |

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| Article 11(8) |  | Article 13(8) |  |
| Article 11(9) |  | Article 13(9) |  |
| Article 12    |  | Article 14    |  |
| Article 13(1) |  | Article 16(1) |  |
| Article 13(2) |  | Article 16(2) |  |
| Article 13(3) |  | Article 16(3) |  |
| Article 14(1) |  | Article 17(1) |  |
| Article 14(2) |  | Article 17(2) |  |
| Article 14(3) |  | Article 17(3) |  |
| Article 14(4) |  | Article 17(4) |  |
| Article 15(1) |  | Article 18(1) |  |
| Article 15(2) |  | Article 18(2) |  |
| Article 15(3) |  | Article 18(3) |  |
| Article 15(4) |  | Article 18(4) |  |
| Article 15(5) |  | Article 18(5) |  |
|               |  | Article 18(6) |  |
| Article 16    |  | Article 15    |  |
| Article 17(1) |  | Article 11(1) |  |
| Article 17(2) |  | Article 11(2) |  |
| Article 17(3) |  | Article 11(3) |  |
| Article 17(4) |  | Article 11(4) |  |

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|---------------|----------------------------|---------------------------------|--|
| Article 18(1) | Article 6(1), letter (a)   | Article 10(1)                   |  |
| Letter (a)    | Letter (c)                 | Letter (a)                      |  |
| Letter (b)    |                            | Letter (b)                      |  |
| Letter (c)    |                            | Letter (c)                      |  |
| Article 18(2) | Article 6(4)               | Article 10(2)                   |  |
| Article 18(3) | Article 6(4)               | Article 10(3)                   |  |
| Article 18(4) | Article 6(1) letter (b)    | Article 10(4)                   |  |
| Article 18(5) | Article 6(2); Article 6(4) | Article 10(5)                   |  |
|               | Article 6(3)               | Article 10(6)                   |  |
| Article 18(6) |                            | Article 10(7)                   |  |
| Article 19(1) |                            | Article 19(1)                   |  |
| Article 19(2) |                            | Article 19(2)                   |  |
| Article 19(3) |                            | Article 19(3)                   |  |
| Article 19(4) |                            | Article 19(4)                   |  |
| Article 19(5) |                            | Article 19(5)                   |  |
| Article 19(6) |                            | Article 22(1)                   |  |
| Article 19(7) |                            | Article 19(6),<br>Article 21(2) |  |
| Article 19(8) |                            | Article 19(7),<br>Article 22(2) |  |
| Article 20(1) |                            | Article 23(1)                   |  |

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| Article 20(2) |  | Article 23(2) |  |
| Article 21    |  | Article 12    |  |
| Article 22(1) |  | Article 24(1) |  |
| Article 22(2) |  | Article 24(2) |  |
| Article 22(3) |  | Article 24(3) |  |
| Article 22(4) |  | Article 24(4) |  |
| Article 22(5) |  | Article 24(5) |  |
| Article 23(1) |  | Article 25(1) |  |
| Letter (a)    |  | Letter (a)    |  |
| Letter (b)    |  | Letter (b)    |  |
| Letter (c)    |  | Letter (c)    |  |
| Letter (d)    |  | -             |  |
|               |  | Article 25(2) |  |
| Article 23(2) |  | Article 25(3) |  |
| Article 23(3) |  | Article 25(4) |  |
| Article 24(1) |  | Article 26(1) |  |
| Article 24(2) |  | Article 26(2) |  |
| Article 24(3) |  | Article 26(3) |  |
| Article 25(1) |  | Article 27(1) |  |
| Article 25(2) |  | Article 27(2) |  |
| Article 26(1) |  | Article 28(1) |  |

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|---------------|--|---------------|--|
| Article 26(2) |  | Article 28(2) |  |
| Article 27(1) |  | Article 29(1) |  |
| Article 27(2) |  | Article 29(2) |  |
| Article 28(1) |  | Article 30(1) |  |
| Article 28(2) |  | Article 30(2) |  |
| Article 28(3) |  | Article 30(3) |  |
| Article 28(4) |  | Article 30(4) |  |
| Article 28(5) |  | Article 30(5) |  |
| Article 29(1) |  | Article 31(1) |  |
| Article 29(2) |  | Article 31(2) |  |
| Article 29(3) |  | Article 31(3) |  |
| Article 29(4) |  | Article 31(4) |  |
| Article 29(5) |  | Article 31(5) |  |
| Article 29(6) |  | -             |  |
|               |  | Article 31(6) |  |
| Article 30(1) |  | Article 32(1) |  |
| Article 30(2) |  | Article 32(2) |  |
| Article 30(3) |  | Article 32(3) |  |
| Article 30(4) |  | Article 32(4) |  |
| Article 31(1) |  | Article 33(1) |  |
| Article 31(2) |  | Article 33(2) |  |

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|---------------|------------------------------------------|-----------------------|---------------|
|               | Article 8(1) (2), (3)                    |                       |               |
| Article 32(1) | Article 9(1)                             | Article 34(1)         |               |
| Letter (a)    |                                          | Letter (a)            |               |
|               | Letter (a)                               | Letter (b)            |               |
| Letter (b)    | Letter (b)                               | Letter (c)            |               |
| Article 32(2) | Article 9(2)                             | Article 34(2)         |               |
| Article 32(3) | Article 9(3)                             | Article 34(3)         |               |
| Article 32(4) | Article 9(4)                             | Article 34(4)         |               |
| Article 32(5) | Article 9(5), Article 9(6), Article 9(7) | Article 34(5)         |               |
| Article 32(6) | Article 9(8)                             | Article 34(6)         |               |
| Article 33(1) |                                          | Article 36(1)         |               |
| Article 33(2) |                                          | Article 36(2)         | Article 47(2) |
| Article 34    | Article 9(9)                             | Article 35            |               |
|               |                                          | Article 37(1),(2),(3) |               |
|               |                                          | Article 38(1), (2)    |               |
|               | Article 10                               | Article 45(2), (4)    |               |
|               | Article 11(1)                            |                       | Article 30(1) |
|               | Article 11(2)                            |                       | Article 30(2) |

|               |               |               |                                             |
|---------------|---------------|---------------|---------------------------------------------|
|               | Article 11(3) |               | Article 30(3)                               |
|               | Article 11(4) |               | Article 30(4)                               |
|               | Article 11(5) |               | Article 30(5)                               |
|               | Article 11(6) |               | Article 30(6)                               |
|               | Article 11(7) |               | Article 30(7)                               |
|               | Article 12    |               | Article 30(8)                               |
|               | Article 13    |               | Chapter 8 of Title IV                       |
| Article 35(1) |               |               | Article 31(1), Article 31(5)                |
|               |               |               | Article 31(2)                               |
| Article 35(2) |               |               | Article 31(3), Article 31(4), Article 31(6) |
|               |               |               | Article 31(7)                               |
| Article 36    |               |               | Article 32(1), (2), (3), (4), (5), (6), (7) |
| Article 37(1) |               | -             |                                             |
| Article 37(2) |               | Article 39(1) |                                             |
| Article 37(3) |               | Article 39(2) |                                             |
| Article 37(4) |               | Article 39(3) |                                             |
| Article 37(5) |               | Article 39(4) |                                             |
| Article 38(1) |               |               | Article 4(1)                                |
| Article 38(2) |               |               | Article 4(2)                                |

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|---------------|--|--|---------------|
| Article 38(3) |  |  | -             |
| Article 39    |  |  | -             |
|               |  |  | Article 7     |
| Article 40(1) |  |  | Article 8(1)  |
| Article 40(2) |  |  | Article 8(2)  |
| Article 40(3) |  |  | Article 8(3)  |
| Article 41    |  |  | Article 9     |
| Article 42(1) |  |  | Article 10    |
| Article 42(2) |  |  | -             |
| Article 43(1) |  |  | Article 11(1) |
| Article 43(2) |  |  | Article 11(2) |
| Article 44(1) |  |  | Article 12(1) |
| Article 44(2) |  |  | Article 12(2) |
| Article 44(3) |  |  | Article 12(3) |
| Article 45    |  |  | Article 13    |
| Point (1)     |  |  | Point (1)     |
| Letter (a)    |  |  | Letter (a)    |
| Letter (b)    |  |  | Letter (b)    |
|               |  |  | Letter (c)    |
| Letter (c)    |  |  | Letter (d)    |
| Letter (d)    |  |  | Letter (e)    |



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|---------------|--|--|------------------|
|               |  |  | Letters (f), (g) |
| Point (2)     |  |  | Point (2)        |
| Letter (a)    |  |  | Letter (a)       |
| Letter (b)    |  |  | Letter (b)       |
| Article 45(3) |  |  | Article 13(3)    |
| Article 46    |  |  | Article 14       |
| Article 47    |  |  | Article 15       |
| Article 48    |  |  | Article 16       |
| Article 49    |  |  | Article 17       |
| Article 50    |  |  | Article 18       |
| Article 51(1) |  |  | Article 19(1)    |
| Article 51(2) |  |  | Article 19(2)    |
| Article 51(3) |  |  | Article 19(3)    |
| Article 52,   |  |  | Article 20       |
| point (1)     |  |  | letter (a)       |
| letter (a)    |  |  | Point (i)        |
| letter (b)    |  |  | Point (ii)       |
| Point (2)     |  |  | Letter (b)       |
| letter (a)    |  |  | Point (i)        |
| letter (b)    |  |  | Point (ii)       |
| letter (c)    |  |  | Point (iii)      |

|            |  |  |                                 |
|------------|--|--|---------------------------------|
| letter (d) |  |  | Point (iv)                      |
| letter (e) |  |  | Point (v)                       |
|            |  |  | Point (vi)                      |
| letter (f) |  |  | Point (vii)                     |
| letter (g) |  |  | Point (viii)                    |
| point (3)  |  |  | Letter (c)                      |
| letter (a) |  |  | Point (i)                       |
|            |  |  | Point (ii)(1), (2), (3),<br>(4) |
| letter (b) |  |  | Point (iii)                     |
| letter (c) |  |  | Point (iv)                      |
|            |  |  | Point (v)                       |
| point (4)  |  |  | Letter (d)                      |
| letter (a) |  |  | Point (i)                       |
| letter (b) |  |  | Point (ii)                      |
| letter (c) |  |  | Point (iii)                     |
| letter (d) |  |  | Point (iv)                      |
| Point (5)  |  |  | Letter (e)                      |
| letter (a) |  |  | Point (i)                       |
| letter (b) |  |  | Point (ii)                      |
| letter (c) |  |  | Point (iii)                     |

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|---------------|--|--|-----------------------|
| letter (d)    |  |  | Point (iv)            |
| letter (e)    |  |  | Point (v), Point (vi) |
| letter (f)    |  |  | Point (vii)           |
| letter (g)    |  |  | Point (viii)          |
| Point (6)     |  |  | Letter (f)            |
| letter (a)    |  |  | Point (i)             |
| letter (b)    |  |  | Point (ii)            |
| letter (c)    |  |  | Point (iii)           |
| Point (7)     |  |  | Letter (g)            |
| letter (a)    |  |  | Point (i)             |
| letter (b)    |  |  | Point (ii)            |
| Article 53    |  |  | Article 21            |
| Article 54(1) |  |  | Article 22(1)         |
|               |  |  | Article 22(2)         |
| Article 54(2) |  |  | Article 22(3)         |
| Article 54(3) |  |  | Article 22(4)         |
| Article 55(1) |  |  | Article 23(1)         |
| Article 55(2) |  |  | Article 23(2)         |
| Article 55(3) |  |  | Article 23(3)         |
| Article 55(4) |  |  | Article 23(4)         |
| Article 55(5) |  |  | Article 23(5)         |

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| Article 55(6) |  |  | Article 23(6) |
| Article 56    |  |  | Article 24    |
| Article 57(1) |  |  | Article 25(1) |
| Article 57(2) |  |  | Article 25(2) |
| Article 57(3) |  |  | Article 25(3) |
| Article 58(1) |  |  | Article 26(1) |
| Article 58(2) |  |  | Article 26(2) |
| Article 58(3) |  |  | Article 26(3) |
| Article 59(1) |  |  | Article 5(1)  |
| Article 59(2) |  |  | Article 5(2)  |
| Article 60(1) |  |  | Article 6(1)  |
| Article 60(2) |  |  | Article 6(2)  |
| Article 60(3) |  |  | Article 6(3)  |
| Article 61(1) |  |  | Article 27(1) |
| Article 61(2) |  |  | Article 27(2) |
| Article 61(3) |  |  | Article 27(3) |
| Article 61(4) |  |  | -             |
| Article 62(1) |  |  | Article 28(1) |
| Article 62(2) |  |  | Article 28(2) |
| Article 62(3) |  |  | Article 28(5) |
| Article 62(4) |  |  | Article 28(3) |

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| Article 62(5)                   |  |  | Article 28(4)                |
| Article 63(1)                   |  |  | Article 29(1)                |
| Article 63(2)                   |  |  | -                            |
| Article 63(3)                   |  |  | Article 29(2)                |
|                                 |  |  | Article 29(3)                |
| Article 64(1)                   |  |  | Article 49(1)                |
|                                 |  |  | Article 49(2)                |
| Article 64(2)                   |  |  | Article 49(3), Article 49(5) |
|                                 |  |  | Article 49(4)                |
| Article 64(3)                   |  |  | Article 49(7)                |
| Article 64(4)                   |  |  | Article 49(6)                |
| Article 65(1)                   |  |  | -                            |
| Article 65(2)                   |  |  | -                            |
| Article 65(3)                   |  |  | -                            |
| Article 65(4)                   |  |  | -                            |
| Article 65(5)                   |  |  | -                            |
| Article 65(6)                   |  |  | -                            |
| Article 66(1)                   |  |  | Article 33(1)                |
| Article 66(2) and Article 66(4) |  |  | Article 40                   |

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